

01/12

CONCEPT AND ORIGIN

- Panchayati Raj = elected rural local self-government, not a State field office.
- Article 40 supplied the Directive Principle; CDP 1952 and NES 1953 exposed the participation gap.
- Core verdict: constitutional form is nationally protected; operational devolution depends heavily on State law.

02/12

EVOLUTION TO CONSTITUTIONAL STATUS

- 1957 Balwant Rai Mehta: democratic decentralisation and three tiers.
- 1977-78 Ashok Mehta: district-centred two-tier alternative, parties, tax power, social audit.
- 1985 G.V.K. Rao: reverse bureaucratisation; district body pivotal for development.
- 1986 L.M. Singhvi: constitutional status, Gram Sabha, Nyaya Panchayats.
- 1989 failed 64th Bill -> 1992 Seventy-third Amendment -> force on 24 April 1993.

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PART IX SPINE

- 243 definitions; 243A Gram Sabha; 243B tiers; 243C composition; 243D reservation.
- 243E duration; 243F disqualification; 243G powers; 243H finance; 243I SFC.
- 243J audit; 243K SEC; 243L UTs; 243M exclusions; 243N transition; 243O election bar.
- Eleventh Schedule lists 29 matters; listing is not automatic transfer.

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GRAM SABHA, TIERS, AND ELECTION

- Gram Sabha = all registered voters in the village area; powers come from State law or PESA.
- Default: village -> intermediate -> district; State population <= 20 lakh may omit intermediate only.
- All territorial seats are directly elected; upper-tier chairpersons are elected by/from elected members.
- Village-chair method, legislator representation, names, and detailed composition vary under State law.

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INCLUSION AND CONTINUITY

- SC/ST seats: population-proportionate; women: not less than one-third seats, including SC/ST women.
- At least one-third chairperson offices for women; backward-class reservation is a State option.
- Five-year term; poll before expiry or within six months of dissolution.
- If remainder < six months, no short-term poll is required; reconstituted body serves only the balance.
- Candidate-age protection: 21, not 25.

06/12

POWERS AND THE THREE FS

- Article 243G lets State law endow planning and scheme powers for economic development and social justice.
- Functions = clear activity map; Functionaries = usable staff control; Funds = predictable and discretionary money.
- Functionality test: can the Panchayat decide, direct, spend, deliver, and answer publicly?
- Constitutional status or a transfer notification alone does not prove self-government.

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FINANCE, SFC, AND AUDIT

- Article 243H: State-authorised taxes, duties, tolls, fees, assigned revenue, grants, and Panchayat Funds.
- Own-source revenue excludes grants; exact levies and borrowing powers are State-specific.
- Article 243I: SFC every five years; report and action explanation laid before State legislature.
- Article 280(3)(bb): Union FC augments State funds for Panchayats on the basis of SFC recommendations.
- Article 243J audit + social audit: financial regularity and community outcome verification are distinct.

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PESA AND COMMUNITY GOVERNANCE

- Article 243M excludes Scheduled Areas from ordinary Part IX; PESA 1996 extends it to Fifth Schedule areas.
- PESA village follows habitation/hamlet/community logic and customary boundaries.
- Gram Sabha safeguards custom, cultural identity, community resources, and customary dispute resolution.
- Keep verbs exact: approval, consultation, recommendation, and prior recommendation are not synonyms.
- PESA covers Fifth Schedule areas, not Sixth Schedule areas or every tribal-majority district.

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PLANNING, ACCOUNTABILITY, AND DIGITAL TOOLS

- Gram Sabha priorities -> GPDP -> tier convergence -> Article 243ZD District Planning Committee.
- eGramSwaraj supports planning/accounts; AuditOnline supports audit workflow; SVAMITVA supports rural survey/property cards.
- RGSA supports capacity; portals do not create legal authority, consent, data quality, or service outcomes.
- Women must be assessed through access -> agency -> outcome; proxy control is a risk, not a stereotype.

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ELECTION AND RESERVATION CASES

- Kishansing Tomar (2006): constitutional local-election calendar must be honoured.
- K. Krishna Murthy (2010): local political reservation needs distinct constitutional and empirical analysis.
- Vikas Kishanrao Gawali (2021): dedicated commission, contemporaneous inquiry, body-wise quota, aggregate ceiling.
- Rahul Ramesh Wagh orders (2022): no OBC-reserved seats before triple-test compliance; use open category until lawful reservation.
- Suresh Mahajan (10 May 2022): unfinished compliance cannot indefinitely postpone constitutionally due elections.
- State of Goa v Fouziya Imtiaz Shaikh (2021): SEC must be independent of the State executive.

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ELECTION DISPUTES AND SOURCE DISCIPLINE

- Article 243O limits ordinary challenges to delimitation/seat allotment and routes results through election petitions.
- It does not abolish statutory remedies or every bounded constitutional-review question.
- Separate Constitution -> central statute -> State Act/rule -> notification -> local practice.
- Never universalise nomenclature, chairperson method, quota enhancement, taxes, committee tenure, or devolution.

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REFORM, TRAPS, AND ANSWER SPINE

- Reform: activity maps -> accountable staff -> untied finance + fair own revenue -> timely SFC/independent SEC.
- Then strengthen Gram Sabha, social audit, PESA compliance, district planning, and assisted digital access.
- Traps: 1992 vs 24 April 1993; 29 vs 18; SEC vs ECI; Fifth vs Sixth Schedule; one-third floor vs State enhancement.
- Answer spine: define -> constitutional rule -> mechanism -> named evidence/case -> gap -> qualification -> verdict.
- Qualified verdict: representation becomes self-government only when authority, staff, money, and citizen scrutiny converge.